4C ASSOCIATES LTD

AND

XXXXXX

FRAMEWORK AGREEMENT FOR THE PROVISION OF SOFTWARE AS A SERVICE

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THIS AGREEMENT is dated 2023

PARTIES

(1) 4C Associates Ltd Limited, a company incorporated in England and Wales having its registered office at Kings House 174 Hammersmith Road, London, W6 7JP (**Supplier**).

(2) **XXXXXX**(**Customer**).

BACKGROUND

(A) The Supplier has developed certain software applications and platforms which it makes available to authorised users via the internet on a subscription basis for spend and supplier analytics.

(B) The Supplier has agreed to provide and the Customer has agreed to take and pay for the Services provided by the Supplier to the Authorised Users subject to the terms and conditions of this framework agreement.

AGREED TERMS

1. INTERPRETATION

1.1 The definitions and rules of interpretation in this clause apply in this agreement.

Additional Services: Services that are outside of the scope of this Agreement provided by the Supplier on terms agreed between the parties

Authorised Users: those persons who are authorised by the Customer to use the Services. Our user model is based on a concurrent user model thus allowing for more Authorised Users than User Subscriptions.

Business Day: a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.

Commencement Date: The date of the commencement of the provision of the Services by the Supplier.

Confidential Information means all proprietary or confidential information relating to the business, technology, customers, financial or other affairs of a party, irrespective of its form or medium.

Customer Data: the data provided by the Customer, for the purpose of using the Services.

Data Privacy Laws: all applicable privacy laws and such other data protection laws as may be in force from time to time which regulate the collection, storage, use and disclosure of information.

Deliverables: all documents, products and materials developed by the Supplier or its agents, contractors and employees as part of or in relation to the Services in any form, including without limitation computer programs, data, reports and specifications (including drafts).

Documentation: the documents made available to the Customer by the Supplier from time to time which sets out a description of the Services and the user instructions for the Services.

Effective Date: the date of this Agreement as specified on page 1.

Fees: means the Service Setup Fees, Additional Agreement Fees and Annual Subscription Fees payable under any schedule to this Agreement.

Initial Subscription Term means the term specified in the relevant.

Intellectual Property Rights means all patents, trademarks, service marks, trade secrets, copyrights (including computer programs and mask works), internet domain names, registered design rights and all associated registrations and applications in relation to the foregoing together with all of the goodwill associated therewith

Normal Business Hours: 9.00 am to 5.00 pm local UK time, each Business Day.

Renewal Period: the period described in clause 19.1.

Services: the subscription services including without limitation any Software and Deliverables provided by the Supplier to the Customer to be provided via (link) **o**r any other website notified to the Customer by the Supplier from time to time.

Service Setup Fee: the fees payable by the Customer to the Supplier for service setup as defined in the Contract.

Software: the online software applications provided by the Supplier as part of the Services.

Subscription Fees: the subscription fees payable by the Customer to the Supplier for the User Subscriptions, as set out in the Contract.

Subscription Term: has the meaning given in the Contract (being the Initial Subscription Term together with any subsequent Renewal Periods).

Support Services Policy: the Supplier's policy for providing support in relation to the Services as set out in Schedule 2.

Term: the term of this agreement.

User Subscriptions: the user subscriptions purchased by the Customer pursuant to clause **Error! Reference source not found.** which entitle Authorised Users to access and use the Services, in accordance with this agreement.

Virus: means any computer code, including any malware and/or software, that is harmful, destructive, disabling or which assists in or enables theft, alteration, denial of service, unauthorised disclosure or destruction or corruption of data including viruses, worms, spyware, adware, keyloggers, trojans, and any new type of threats.

1.2 Clause, schedule and paragraph headings shall not affect the interpretation of this agreement.

1.3 A person includes an individual, corporate or unincorporated body (whether or not having separate legal personality).

1.4 A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.

1.5 Unless the context otherwise requires, words in the singular shall include the plural and in the plural shall include the singular.

1.6 Unless the context otherwise requires, a reference to one gender shall include a reference to the other genders.

1.7 A reference to a statute or statutory provision is a reference to it as it is in force as at the date of this agreement.

1.8 A reference to a statute or statutory provision shall include all subordinate legislation made as at the date of this agreement under that statute or statutory provision.

1.9 A reference to writing or written includes e-mail.

1.10 References to clauses and schedules are to the clauses and schedules of this agreement; references to paragraphs are to paragraphs of the relevant schedule to this agreement.

2. CUSTOMER'S UNDERTAKINGS

2.1 The Customer undertakes and agrees with the Supplier to:

(a) use all reasonable endeavours to promote the distribution and sale of the Services;

(b) ensure that Authorised Users are aware of and accept the terms hereof before signing the Services;

(c) inform the Supplier immediately of any changes in ownership or Control of the Customer and of any change in its organisation or method of doing business which might affect the performance of the Customer's duties in this Agreement.

3. SUPPLY OF SERVICES

3.1 The Supplier shall supply the following during the Term in the form agreed by the parties:

(a) the latest version of the Services; and

(b) such updates or new releases to the Services as such updates or new release become generally commercially available.

4. ADVERTISING AND PROMOTION

4.1 The Customer shall observe all reasonable directions and instructions given to it by the Supplier in relation to the promotion and advertisement of the Services to the extent that such promotions or advertisements refer to the Services or otherwise use the Trade Marks, and shall not make any written statement as to the quality or manufacture of the Services without the prior written approval of the Supplier.

5. ANTI-BRIBERY

Each party shall comply with all applicable laws, regulations and sanctions relating to anti-bribery and anti-corruption including but not limited to the Bribery Act 2010;

6. INTELLECTUAL PROPERTY RIGHTS

6.1 Unless otherwise agreed between the parties, all Intellectual Property Rights in and to the Services belong, and shall belong, to the Supplier and/or its licensors.

6.2 Customer shall retain ownership of all Intellectual Property Rights in all Customer Data, materials, items and other data owned or controlled by Customer on the Commencement Date.

6.3 Without prejudice to the right of the Customer or any third party to challenge the validity of any Intellectual Property Rights of the Supplier, the Customer shall not do or authorise any third party to do any act which would or might invalidate or be inconsistent with any Intellectual Property Rights of the Supplier and shall not omit or authorise any third party to omit to do any act which, by its omission, would have that effect or character.

6.4 The Supplier makes no representation or warranty as to the validity or enforceability of the Intellectual Property Rights in the Services nor as to whether the same infringe on any Intellectual Property Rights of any third party.

7. COMMENCEMENT AND DURATION

This Agreement shall commence on the Agreement Commencement Date and shall continue, unless terminated earlier in accordance with clause 19 (Termination), for 3 (three) years.

8. USER SUBSCRIPTIONS

8.1 Subject to the Customer purchasing the User Subscriptions in accordance with clause 11.3 and clause 18.1, the Supplier hereby grants to the Customer the right to permit the Authorised Users to use the Services during the Term.

8.2 The Customer shall use all reasonable endeavours to prevent any unauthorised access to, or use of, the Services and, in the event of any such unauthorised access or use, promptly notify the Supplier.

9. ADDITIONAL USER SUBSCRIPTIONS

9.1 The Customer may, from time to time during any Subscription Term, purchase additional User Subscriptions in excess of the number set out in the initial Contract and the Supplier shall grant access to the Services to such additional Authorised Users in accordance with the provisions of this Agreement.

10. SERVICES

10.1 The Supplier shall, during the Subscription Term, provide the Services to the Customer for the Authorised User on and subject to the terms of the Contract.

10.2 The Supplier shall make the Services available 24 hours a day, seven days a week with a tolerance that the Supplier shall not be in breach of this clause if the Services are available for no less than 99 per cent of any given month during the Term of this Agreement.

10.3 Maintenance will be carried out before 9am and after 5pm, and at weekends GMT. This includes datacentre maintenance and software upgrades. Five Business Days' notice will be given whenever possible, although the Supplier reserves the right to make emergency changes with no notice

10.4 The Supplier will, as part of the Services and at no additional cost to the Customer, provide the Customer with the Supplier's standard customer support services as described in Schedule 2.

11. DATA PROTECTION

11.1 All parties will comply with all applicable requirements of the Data Protection Legislation. This clause 9 is in addition to, and does not relieve, remove or replace, a party's obligations or rights under the Data Protection Legislation. The parties shall comply with all applicable requirements of the Data Privacy Laws and its Privacy and Security Policy relating to the privacy and security of the Customer Data as may be notified to the Customer from time to time.

11.2 For the purposes of this clause, **controller**, **processor**, **personal data**, **personal data breach**, **processing**, and **appropriate technical and organisational measures** shall have the meanings given in the Data Protection Legislation.

11.3 The parties acknowledge that, for the purposes of the Data Protection Legislation, the Customer is the controller and the Supplier is the processor. Schedule3 sets out the scope, nature, purpose and duration of the processing by the processor and the types of personal data and categories of data subject.

11.4 Without prejudice to the generality of clause 9.1, the processor shall, in relation to any personal data processed in connection with the performance of its relevant obligations under this agreement:

(a) process that personal data only on the documented written instructions of the Customer unless the processor is required by Applicable Laws to otherwise process that personal data, in which case the processor shall promptly notify the Customer of this in writing before performing the processing required by the Applicable Laws unless those Applicable Laws prohibit the processor from notifying the Customer;

(b) ensure that at all times it has in place appropriate technical and organisational measures to protect against the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data (a "**Data Security Breach**"), which are appropriate to the harm that might result from a Data Security Breach and the nature of the data to be protected, having regard to the state of technological development and the cost of implementing any measures (those measures should include, where appropriate, but will not be limited to, pseudonymising and encrypting personal data, ensuring confidentiality, integrity, availability and resilience of its systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the technical and organisational measures adopted by it;

(c) ensure that the personal data is only accessed by employees who need to access it in order to meet the processor's relevant obligations under this agreement and ensure all such employees who have access to and/or process personal data are bound by appropriate confidentiality obligations;

(d) not transfer any personal data outside of the European Economic Area unless the prior written consent of the Customer has been obtained and ensure the conclusion of all necessary documents and measures as are required to enable the Customer to comply with the Data Protection Legislation in relation to the transfer;

(e) provide all necessary assistance to the Customer in responding to any request from a data subject made under the Data Protection Legislation and in ensuring compliance with its obligations under the Data Protection Legislation with respect to security, breach notifications, impact assessments and consultations with supervisory authorities or regulators;

(f) comply with any request from the Customer to amend, transfer, delete, suspend or restrict the processing of the personal data;

(g) without limiting the generality of clause 9.4(e), the processor will inform the Customer immediately in writing if at any time: (i) there is a Data Security

Breach or a suspected Data Security Breach in relation to any personal data; or (ii) any personal data is or is suspected to be used, disclosed to or accessed by a third party, except in accordance with this agreement; or (iii) any personal data is lost, corrupted, destroyed or otherwise rendered unusable. This shall include providing a description of (and the approximate volume of) the personal data and the data subjects affected, the nature of the breach, the likely consequences of the breach and the measures taken and/or proposed to be taken to address the breach and such further information as the Customer requests from time to time. The processor shall, at its own cost, immediately take such actions as the Customer shall require to remedy the breach and to avoid or minimise potential loss, damage or distress to affected individuals. The processor shall also reimburse the Customer for all legal and other costs, incurred in connection with such breach or suspected breach and any associated remedial action (including without limitation any costs associated with the investigation of the issue, notifications to affected individuals, the Office of the Information Commissioner and other supervisory bodies, provision of fraud/identity theft prevention services to affected individuals and any other activities undertaken to remedy or minimise the impact of the breach);

(h) at the written direction of the Customer, delete or return personal data and copies thereof to the Customer within 2 Business Days of termination of this agreement unless required by Applicable Law to store the personal data. In respect of any personal data retained, the processor shall become a controller and will comply with all Data Protection Legislation. The processor agrees to indemnify and keep indemnified the Customer against all costs, claims, damages, expenses and losses incurred by the Customer in respect of such retained personal data; and

(i) maintain complete and accurate records and information to demonstrate its compliance with this clause and allow for audits by the Customer or the Customer's designated auditor and permit the Customer to audit the processor’s compliance with these terms and provide reasonable access to the processor’s records and systems as may be required for such audits.

11.5 The Customer does not consent to the Supplier appointing any third-party processor of personal data under this agreement.

11.6 The Supplier agrees to indemnify and keep indemnified and defend at its own expense the Customer against all costs, claims, damages or expenses (including but not limited to legal costs and expenses) incurred by the Customer or for which the Customer may become liable due to a breach by the Supplier of its obligations under this clause 9.

12. SUPPLIER'S OBLIGATIONS

12.1 The Supplier undertakes that the Services will be performed in good faith, with reasonable skill.

12.2 The Supplier shall make the Services available to the Customer 24 hours a day, 7 days a week, provided that the Supplier shall not be in breach of this clause if the Services are available for no less than 99.9% of any given month during the

Subscription Term (other than where such downtime occurs under clause 10.4 below).

12.3 This Agreement shall not prevent the Supplier from entering into similar agreements with third parties, or from independently developing, using, selling or licensing documentation, products and/or services which are similar to those provided under this agreement.

12.4 The Supplier will, as part of the Services and at no additional cost to the Customer, provide the Customer with the Supplier's standard customer support services as described in Schedule 2.

12.5 The Supplier warrants that it has and will maintain all necessary licences, consents, and permissions necessary for the performance of its obligations under this Agreement.

13. CUSTOMER'S OBLIGATIONS

The Customer shall:

(a) Provide the Supplier with the Customer Data requested and required by the Supplier to perform the Services

(b) Comply with all applicable laws and regulations with respect to its business and the performance of its obligations under this Agreement

14. SURVIVAL

14.1 Obligations which by their nature would continue beyond the termination, cancellation or expiration of this Agreement will survive termination, cancellation or expiration of this Agreement.

14.2 Termination of this Agreement shall not affect any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breaches of the Agreement which existed at or before the date of termination.

15. CHARGES AND PAYMENT

15.1 In consideration for the Services the Customer shall pay the Fees within 30 days of receipt of an invoice from the Supplier.

15.2 If the Supplier has not received payment of any undisputed invoice within 30 days after the due date, and without prejudice to any other rights and remedies of the Supplier, then the Supplier upon 7 days' written notice to the Customer may, without liability to the Customer, disable the Customer's password, account and access to all or part of the Services and the Supplier shall be under no obligation to provide any or all of the Services while the undisputed invoice(s) concerned remain unpaid. The Customer's failure to pay any disputed Fees shall not be deemed to be a breach of this Agreement.

15.3 All amounts and fees stated or referred to in this Agreement shall be payable in pounds sterling. All amounts are exclusive of value added tax, which shall be added to the Supplier's invoice(s) at the appropriate rate.

16. CONFIDENTIALITY

16.1 Each party may be given access to Confidential Information from the other party in order to perform its obligations under this Agreement.

16.2 Each party must keep the Confidential Information of the other party confidential, and must not disclose any such Confidential Information to any person except:

(i) with the consent of the party who supplied the Confidential Information;

(ii) to its employees, legal advisers, auditors and other consultants, provided the recipient is bound by similar obligations of confidentiality; or

(iii) if the other party is required to do so by law, court order, regulatory body or rules of a recognised stock exchange.

16.3 Each party must keep the other party's Confidential Information confidential and must not use the Confidential Information except as necessary for the purposes of this Agreement. Each party must store the other party's Confidential Information in a way that minimises the risk of unauthorised access.

16.4 No party shall make, or permit any person to make, any public announcement concerning this Agreement without the prior written consent of the other parties. (such consent not to be unreasonably withheld or delayed), except as required by law, any governmental or regulatory authority (including, without limitation, any relevant securities exchange), any court or other authority of competent jurisdiction.

16.5 The above provisions of this clause 19 shall survive termination of this agreement, however arising.

17. INDEMNITY

17.1 The Customer shall defend, indemnify and hold harmless the Supplier against claims, actions, proceedings, losses, damages, expenses and costs (including without limitation court costs and reasonable legal fees) arising out of or in connection with the Customer's or the Authorised User's use of the Services provided that:

(a) the Customer is given prompt notice of any such claim;

(b) the Supplier provides reasonable co-operation to the Customer in the defence and settlement of such claim; and

(c) the Customer is given sole authority to defend or settle the claim.

17.2 The Supplier shall defend the Customer, its officers, directors and employees against any and all claims, that the Services infringes any United Kingdom patent effective as of the Effective Date, copyright, trade mark, database right or right of confidentiality, and shall indemnify the Customer for any amounts awarded against the Customer in judgment or settlement of such claims, provided that:

(a) the Supplier is given prompt notice of any such claim;

(b) the Customer provides reasonable co-operation to the Supplier in the defence and settlement of such claim, at the Supplier's expense; and

(c) the Supplier is given sole authority to defend or settle the claim.

17.3 In the defence or settlement of any claim, the Supplier may procure the right for the Customer to continue using the Services, replace or modify the Services so that they become non-infringing or, if such remedies are not reasonably available, terminate this agreement on 10 Business Days' notice to the Customer without any additional liability or obligation to pay liquidated damages or other additional costs to the Customer.

17.4 The foregoing and clause 18.5 state the Customer's sole and exclusive rights and remedies, and the Supplier's (including the Supplier's employees', agents' and sub-contractors') entire obligations and liability, for infringement of any patent, copyright, trade mark, database right or right of confidentiality.

18. SUPPLIER'S LIMITATION OF LIABILITY

This clause 18 sets out the entire financial liability of the Supplier to the Customer arising under or in connection with this agreement in respect of any use made by the Customer of the Services or any part of them; and in respect of any representation, statement or tortious act or omission (including negligence) arising under or in connection with this agreement.

18.1 Except as expressly and specifically provided in this Agreement:

(a) the Customer assumes sole responsibility for results obtained from the use of the Services by the Customer, and for conclusions drawn from such use. The Supplier shall have no liability for any damage caused by errors or omissions in any information, instructions or scripts provided to the Supplier by the Customer in connection with the Services, or any actions taken by the Supplier at the Customer's direction;

(b) all warranties, representations, conditions and all other terms of any kind whatsoever implied by statute or common law are, to the fullest extent permitted by applicable law, excluded from this agreement; and

18.2 Subject to clause 21.3, Supplier's aggregate liability (whether based in contract, negligence, under statute or otherwise) under this Agreement shall not exceed the Fees payable by Customer under this Agreement.

18.3 The limitations of liability in clauses 21.2, 21.5 and 21.6 shall not apply to any liability arising from or related to:

(a) death or personal injury caused by a party's negligence; or

(b) the indemnity in clause 20.1; or

(c) any fraudulent or unlawful act or omission.

18.4 Subject to clause 21.3, Customer's aggregate liability (whether based in contract, negligence, under statute or otherwise) under this Agreement shall not exceed the total Subscription Fees paid for the User Subscriptions during the 12 months immediately preceding the date on which the claim arose.

18.5 the Supplier shall not be liable whether in tort (including for negligence or breach of statutory duty), contract, misrepresentation, restitution or otherwise for any loss of profits, loss of business, depletion of goodwill and/or similar losses or loss or corruption of data or information, or pure economic loss, or for any special, indirect or consequential loss, costs, damages, charges or expenses however arising under this agreement; and

18.6 the Supplier's total aggregate liability in contract (including in respect of the indemnity at clause 17.2), tort (including negligence or breach of statutory duty), misrepresentation, restitution or otherwise, arising in connection with the performance or contemplated performance of this agreement shall be limited to the total Subscription Fees paid for the User Subscriptions during the Initial Subscription Term.

19. TERM AND TERMINATION

19.1 This Agreement shall, commence on the Effective Date and shall continue for the Initial Subscription Term. At the end of the subscription term, the agreement will renew for successive renewal periods equal to the Initial Subscription Term unless terminated by either party upon 30 days written notice.

19.2 Without affecting any other right or remedy available to it, either party may terminate this Agreement with immediate effect by giving written notice to the other party if:

(a) the other party fails to pay any amount due under this Agreement on the due date for payment and remains in default not less than 30 days after being notified in writing to make such payment;

(b) the other party commits a material breach of any other term of this Agreement which breach is irremediable or (if such breach is remediable) fails to remedy that breach within a period of 30 days after being notified in writing to do so;

(c) the other party repeatedly breaches any of the terms of this Agreement in such a manner as to reasonably justify the opinion that its conduct is inconsistent with it having the intention or ability to give effect to the terms of this Agreement;

(d) the other party is unable to pay its debts as they fall due or admits inability to pay its debts or is deemed unable to pay its debts within the meaning of section 123 of the Insolvency Act 1986 ;

(e) the other party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with its creditors other than for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;

(f) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other party other than for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;

(g) an application is made to court, or an order is made, for the appointment of an administrator, or if a notice of intention to appoint an administrator is given or if an administrator is appointed, over the other party; or

(h) a person becomes entitled to appoint a receiver over the assets of the other party or a receiver is appointed over the assets of the other party.

19.3 On termination of this Agreement for any reason:

(a) Licences granted under this Agreement shall immediately terminate;

(b) the Supplier may destroy or otherwise dispose of any of the Customer Data in its possession unless the Supplier receives, no later than 30 days after the effective date of the termination of this Agreement, a written request for the delivery to the Customer of the then most recent back-up of the

Customer Data. The Supplier shall use reasonable commercial endeavours to deliver the back-up to the Customer within 15 days of its receipt of such a written request, provided that the Customer has, at that time, paid all fees and charges outstanding at and resulting from termination (whether or not due at the date of termination); and

(c) any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the Agreement which existed at or before the date of termination shall not be affected or prejudiced.

20. FORCE MAJEURE

The Supplier shall have no liability to the Customer under this agreement if it is prevented from or delayed in performing its obligations under this agreement, or from carrying on its business, by acts, events, omissions or accidents beyond its reasonable control, including, without limitation, strikes, lock-outs or other industrial disputes (whether involving the workforce of the Supplier or any other party), failure of a utility service or transport or telecommunications network, act of God, war, riot, civil commotion, malicious damage, compliance with any law or governmental order, rule, regulation or direction, accident, breakdown of plant or machinery, fire, flood, storm or default of suppliers or sub-contractors, provided that the Customer is notified of such an event and its expected duration.

21. CONFLICT

If there is an inconsistency between any of the provisions in the main body of this Agreement and the Schedules, the provisions in the main body of this Agreement shall prevail.

22. GENERAL

22.1 Variation

No variation of this Agreement shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

22.2 Waiver

No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

22.3 Rights and remedies

Except as expressly provided in this Agreement, the rights and remedies provided under this Agreement are in addition to, and not exclusive of, any rights or remedies provided by law.

22.4 Severance

(a) If any provision (or part of a provision) of this Agreement is found by any court or administrative body of competent jurisdiction to be invalid, unenforceable or illegal, the other provisions shall remain in force.

(b) If any invalid, unenforceable or illegal provision would be valid, enforceable or legal if some part of it were deleted, the provision shall apply with whatever modification is necessary to give effect to the commercial intention of the parties.

22.5 **Entire agreement**

(a) This Agreement, and any documents referred to in it, constitute the whole agreement between the parties and supersede any previous arrangement, understanding or agreement between them relating to its subject matter.

22.6 **Assignment**

Neither party shall, without the prior written consent of the other party, novate, assign, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under this Agreement.

22.7 **No partnership or agency**

Nothing in this Agreement is intended to or shall operate to create a partnership between the parties, or authorise either party to act as agent for the other, and neither party shall have the authority to act in the name or on behalf of or otherwise to bind the other in any way (including, but not limited to, the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power).

22.8 **Third party rights**

This Agreement does not confer any rights on any person or party (other than the parties to this Agreement and, where applicable, their successors and permitted assigns) pursuant to the Contracts (Rights of Third Parties) Act 1999.

22.9 **Notices**

Any notice required to be given under this Agreement shall be sent as an attachment by email to the other party at its email address set out below, or such other email address as may have been notified by that party for such purposes.:

Supplier Contact:

Name:

Email:

Customer Contact:

Name:

Email:

A notice must be treated as given and received if sent by email before 5pm on a business day at the place of receipt, on the day it is sent and otherwise on the next business day at the place of receipt.

22.10 **Governing law**

This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

22.11 **Jurisdiction**

Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

22.12 **Electronic Signatures**

A party may execute this Agreement by using a digital signature. A party may also execute this Agreement by sending to the other party by email, a scanned copy of the Agreement signed by the sending party's authorised representative. This Agreement may be executed in counterparts, which taken together will constitute one document

EXECUTED as an Agreement:

Signed by Anvil Analytical Ltd by its authorised representative:	..... Steve Harrison CEO
Signed by XXXXXX its authorised representative:	.....

SCHEDULE 1 – PRICING & SERVICE DESCRIPTION

This Schedule will survive termination of the Agreement

All figures are exclusive of VAT & expenses

1. SERVICE DESCRIPTION

The Digital Procurement Service will provide:

- TBC – based on modules selected

2. SERVICE SETUP

Service Setup will include:

- Set up of mappings to associate data from different data sources – The platform is built around an extensible data model and a NOSQL database. This approach enables us to ingest data in many different forms and therefore has the benefit that the Customer does not need to format the data extensively. Columns in the input file are mapped to the datamodel in a mapping table to enable the platform to ingest and process the data. In addition, the Customer may wish to view their data in a taxonomy that is different to the Anvil UNSPSC based taxonomy. Mapping files are used to configure the name change, pathname mapping and other bespoke rules necessary to support the Customer taxonomy.
- Routines to automate data manipulation. Handling routines are used to detect new files loaded into the Sharepoint Site, open the file check the timestamp, check that no new columns have been added or types changes and any other checks or validations that may be required. The automation will map and load the file into the platform. Other routines will be used to archive older files.
- Customer specific analytics & reports. We allow 2 days to setup reports or modify analytics to meet your specific needs. i.e. our standard views support geography. We might chose to re-layout the report to remove it or put another report there or you may wish to use postcode to get a regional view. This is possible but will require some changes to views and measures. If you have a full specification of what you want we can provide a full list of what we will do in the setup. Our approach is to allow time and evolve the service as the data is reported.

3. ACCESS TO THE SERVICE

Shall be provided as otherwise notified to the Customer from time to time

4. FEE STRUCTURE

TBC

5. THIRD PARTY SERVICES

The Supplier may procure and pass on the Customer at cost any third-party services that are incorporated into the Service, subject to written agreement between the parties.

6. INITIAL SUBSCRIPTION TERM

The Initial Subscription Term shall be three years.

The Commencement Date of this client specific schedule shall be the date of signature below.

Signed by Steve Harrison for and on behalf of Anvil Analytical Ltd

.....

CEO

Date

Signed by XXXXXXXXX for and on behalf of

.....

XXXX

Date

SCHEDULE 2– CUSTOMER SUPPORT SERVICES POLICY

1. CUSTOMER SUPPORT

The Supplier offers a single point of contact for issues relating to the Service via its Customer Service Desk. Incidents can be raised via the Customer Service Desk during Normal Business Hours.

Incidents can be raised outside of these hours via email, however incidents will only be resolved during supported hours

Technical assistance outside the above hours can be provided by prior arrangement with reasonable notice, as an Additional Service

2. SERVICE LEVELS

The service levels details below are based our standard service, accessed via the internet and therefore excludes performance and availability constraints which are beyond our control.

Each Incident will be assigned a priority and dealt with by Supplier acting reasonably in accordance with the Priority Levels and Response Times

Level	Description	Response	Resolution
1 – Critical	System-wide failure, whereby substantially all processes are non-functional	30 minutes	4 hours, unless process to resolve necessarily takes longer than 4 hours.

	Failure of Hardware issues will be reported to the support provider (as specified in the relevant hardware SLA) within 30 minutes		
2 – Standard	Specific process is non functional or producing errors	1 Business Day	3 Business Days
3 – Low	Advice/Enquiries	1 Business Days	5 Business Days, or as advised by Supplier

Response means a response by the Support Desk to the Support Contact by telephone or email, acknowledging that the Incident has been accepted by Supplier and giving the Support Contact the priority which has been assigned to the Incident and providing an initial analysis

'Resolution' means the identification and provision of a fix or the identification of a work-around that can be implemented by the Customer until such times as a permanent solution is delivered